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IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA

NOEL RODRIGUEZ,

Appellant,

Case No.: 1D-20260982
D/A.: 11/13/2023

v.

CITY OF CAPE CORAL /
COMMERCIAL RISK MANAGEMENT, INC.

Appellees.

REPLY BRIEF OF APPELLANT

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TABLE OF CONTENTS

Table of Contents……i

Table of Authorities……ii

Preliminary Statement……1

ARGUMENT……2

I. THE JCC ERRED AS A MATTER OF LAW BY INTERPRETING §440.13(2)(A), FLA. STAT. (2023) IN A MANNER THAT CONTRAVENES THE LEGISLATIVE INTENT EXPRESSED IN §440.015, FLA. STAT. (2023)………3

II. THE JCC ERRED IN CONSTRUING §440.13(2)(A), FLA. STAT. (2023) IN A WAY THAT IGNORES BINDING PRECEDENT FROM THIS COURT AS TO REASONABLENESS IN THE PROVISION OF CARE……6

III. THE JCC ERRED IN FINDING DR. PERLOFF'S AVAILABLITY VIA TELEHEALTH DISPOSES OF HIS DUTY TO ADDRESS WHETHER THE DISTANCE TO DR. PERLOFF'S OFFICE WAS REASONABLE………10

IV. THE JCC ERRED IN DENYING CLAIMANT A FOLLOW-UP APPOINTMENT WITH A CARDIOLOGIST GIVEN UNREFUTED EVIDENCE SHOWING CLAIMANT HAD NOT BEEN SEEN BY A CARDIOLOGIST SINCE THE FILING OF HIS PETITION FOR BENEFITS………17

V. THE JCC ERRED IN FAILING TO FIND THAT APPELLEES ACQUIESCED TO CLAIMANT'S ENTITLEMENT TO A CARDIOLOGIST WITHIN A REASONABLE DISTANCE FROM HIS RESICENCE OR PLACE OF EMPLOYMENT………20

Conclusion.....22

Certificate of Compliance.....23

Certificate of Service.....23

TABLE OF AUTHORITIES

Cases **Page(s)**

Agee v. Brown, 73 So.3d 882, 886 (Fla. 4th DCA 2011).....3

City of Bartow v. Flores, 301 So. 3d 1091
(Fla. 1st DCA 2020).....4

Commercial Carrier Corp. v. Fox, 400 So. 2d 154
(Fla. 1st DCA 1981).....6,8

Cuomo v. State, 257 So.3d 584, 586 (Fla. 1st DCA 2018).....3

Dania Jai-Alai Palace, Inc. v. Sykes, 450 So.2d 1114, 1122
(Fla. 1984).....2

Dep't of Agric. & Consumer Servs. v. Anderson,
132 So. 3d 900, 901 (Fla lst DCA 2014).....17

Hall's Camp Inc. v. Decker, 394 So. 2d 1041
(Fla. 1st DCA 1981).....6,8

Kessler v. Community Blood Bank, 621 So. 2d 539
(Fla. 1st DCA 1993) 7,8

Patton v. Metal Indus., 636 So. 2d 891, 892-93
(Fla. 1st DCA 1994).....12

Rolling v. State ex rel. Butterworth, 630 So.2d 635, n. 1 (Fla. 1st DCA 1994).....2

Stukins v. State, 418 So.3d 168, 174 (Fla. 4th DCA 2025).....3

Wright v. Golf Drive Residence, Inc., 412 So. 2d 884 (Fla. 1st DCA 1982).....7,8

Zekanovic v. Am. II, Corp., 208 So. 3d 851 (Fla. 1st DCA 2017).....4

Statutes

§440.13(2), Fla. Stat. (2023).....4

§440.13(2)(a), Fla. Stat. (2023).....3,4,5,6,7,10

§440.13(2)(f), Fla. Stat. (2023).....15

§440.015, Fla. Stat. (2023).....3,4,5,19

Rules

Fla. R. App. P 9.210.....3

PRELIMINARY STATEMENT

The Appellant, Noel Rodriguez, may be referred to by name or as the "Claimant."

The Appellees, City of Cape Coral and Commercial Risk Management, Inc., may be referred to by name, as the "Appellees," as "Employer/Carrier," or individually as the "Employer" or "Carrier," respectively.

The Honorable Frank J. Clark, Judge of Compensation Claims, may be referred to by name or as the "JCC."

References to the record on appeal will be referenced by the letter "R" followed by the applicable page number(s). Example: (R. at 100).

References to the trial transcript in the proceedings below will be referenced by the letter "T" followed by the applicable page number(s). Example: (T. at 100).

References to Appellees' Answer Brief will be referenced by the letters "AB" followed by the applicable page numbers. Example: (AB at 5).

ARGUMENT

Appellees ignore the five points raised on appeal, instead reducing Claimant's arguments to a singular issue - whether the JCC erred "in denying the Claimant-Appellant's request for authorization of a different board-certified cardiologist within a reasonable distance from his residence or place of employment." (AB at ii, 5, 12). As noted in *Rolling v. State ex rel. Butterworth*, 630 So.2d 635, n. 1 (Fla. 1st DCA 1994), "This is inappropriate." *Rolling* instructs that Appellees "should address the issues in the same order as they are presented in the Initial Brief so that the court can be certain which arguments are being addressed." *Id.* (citing *Dania Jai-Alai Palace, Inc. v. Sykes*, 450 So.2d 1114, 1122 (Fla. 1984)).

Claimant has attempted to glean from Appellees' Answer Brief the applicability of their counterarguments to the points raised on appeal and to respond to same accordingly. This proved difficult, however, as Appellees declare that the "JCC applied the correct legal standard" without identifying the standard purportedly applied. (AB at 3, 5). Appellees then largely avoid addressing the specific issues pled by reframing Claimant's arguments as an impermissible request

to reweigh competing medical testimony. (AB at 4, 12-13). As a result, many issues remain unaddressed.

Appellees' silence as to the specific arguments raised on appeal should be treated as a concession of error. *See Stukins v. State*, 418 So.3d 168, 174 (Fla. 4th DCA 2025) (citing *Agee v. Brown*, 73 So.3d 882, 886 (Fla. 4th DCA 2011)). *See also Cuomo v. State*, 257 So.3d 584, 586 (Fla. 1st DCA 2018) (holding that an appellee's failure to brief an issue in an answer brief required by rule 9.210 constitutes a forfeiture of an appellee's right to respond).

Irrespective of whether Appellees have conceded error or have forfeited their right to respond, however, Claimant maintains that he has met his burden of establishing reversible error as explained in his Initial Brief and below.

I. THE JCC ERRED AS A MATTER OF LAW BY INTERPRETING §440.13(2)(A), FLA. STAT. (2023) IN A MANNER THAT CONTRAVENES THE LEGISLATIVE INTENT EXPRESSED IN §440.015, FLA. STAT. (2023).

Appellees put forth no argument in rebuttal to Point I on appeal – that the JCC erred as a matter of law by interpreting section

440.13(2)(a), Florida Statutes, in a manner that contravenes the Legislative intent expressed in section 440.015, Florida Statutes.

Appellees had a duty furnish to Claimant "such medically necessary remedial treatment, care, and attendance for such period as the nature of the injury or the process of recovery may require." §440.13(2)(a), Fla. Stat. (2023). Section 440.015, Florida Statutes, requires that section 440.13(2)(a), Florida Statutes, be administered "in a manner that facilitates the self-execution of the system" and further requires that section 440.13(2)(a), Florida Statutes, be interpreted to assure "the quick and efficient delivery of … of medical benefits" to Claimant "at a reasonable cost to the employer."

In addressing section 440.13(2), Florida Statutes, this court stated, "In keeping with the spirit of section 440.015 to ensure a quick and efficient delivery of disability and medical benefits to an injured worker, the parties are under an implied duty to act reasonably and fairly." See *City of Bartow v. Flores*, 301 So. 3d 1091 (Fla. 1st DCA 2020) (citing *Zekanovic v. Am. II, Corp.*, 208 So. 3d 851 (Fla. 1st DCA 2017);

The JCC in the instant claim nevertheless found that he lacked authority to consider the equity and fairness of requiring Claimant,

a firefighter who has suffered two heart attacks and has undergone multiple cardiac procedures to include a quadruple bypass surgery, to spend five hours traveling 250 to 260 miles roundtrip to be evaluated in-person by an authorized cardiologist despite the absence of any medical or practical necessity for the travel and despite the availability of cardiologists in his local community. (R. at 23, 165-166, 554-555; T. at 32-33, 36, 38, 43).

Although Appellees acknowledge that the JCC "found Appellant's position rested on fairness concerns the JCC could not impose as equitable relief under Chapter 440," they offer no rebuttal, no countervailing record evidence, and no legal authority in defense of the legal error resulting from the JCC's determination that he was powerless to address this inequity. (AB at 10). In fact, Appellees' Answer Brief does not acknowledge section 440.015, Florida Statutes, or this court's prior holding in *Flores* at all.

Based on the foregoing, and for the reasons asserted in Claimant's Initial Brief, the JCC erred by interpreting and applying section 440.13(2)(a), Florida Statutes, in a manner that contravenes the stated legislative intent of §440.015, Florida Statutes.

II. THE JCC ERRED IN CONSTRUING §440.13(2)(A), FLA. STAT. (2023) IN A WAY THAT IGNORES BINDING PRECEDENT FROM THIS COURT AS TO REASONABLENESS IN THE PROVISION OF CARE.

Appellees also ignore Claimant's Point II on appeal – that the JCC erred in construing section 440.13(2)(a), Florida Statutes, in a manner that that ignores the binding precedent of this Court.

This court has repeatedly held that an employer/carrier may not require a claimant to travel an unreasonable distance for treatment without a valid basis. One factor in determining whether it is reasonable to require a claimant to travel is whether treatment is available in the claimant's community. *Hall's Camp Inc. v. Decker*, 394 So. 2d 1041, 1044 (Fla. 1st DCA 1981); *Commercial Carrier Corp. v. Fox*, 400 So. 2d 154, 155 (Fla. 1st DCA 1981). In this case, Dr. Perloff testified that there were qualified cardiologists in the Fort Myers, Naples, and Sarasota areas that were much closer to Claimant than Broward County. (R. at 228). The adjuster acknowledged there were cardiologists in the Cape Coral area who accepted workers' compensation, including Dr. Macaluso and others. (R. at 749). Following his initial heart attack in 2020, Claimant was in fact authorized to follow-up with a local cardiologist, Dr. Kshetrapal

(a/k/a "Dr. Pal"), until Appellees unilaterally transferred his care to Dr. Perloff. (T. at 33-35; R. at 742). Claimant has colleagues with open cardiac claims, and they are not required to travel to Broward County for treatment. (T. at 43-44)

Another factor in determining reasonableness is whether there is a "medical or practical necessity for such travel." *Wright v. Golf Drive Residence, Inc.*, 412 So. 2d 884, 889 (Fla. 1st DCA 1982). Here, Dr. Perloff agreed that it was not medically necessary for Claimant to travel to Broward to see him specifically, and there was nothing extraordinary about the care he provides that requires him to be the one to treat the Claimant. (R. at 228, 234).

In *Wright*, this court held that absent a finding of a medical or practical necessity, it is in error to require a claimant to travel for authorized care. Similarly, in *Kessler v. Community Blood Bank*, 621 So. 2d 539, 542 (Fla. 1st DCA 1993), this court held that it is in error for a JCC to find that the employer/carrier authorized "qualified medical treatment" as required by §440.13(2)(a), Fla. Stat., without making a specific finding as to the reasonableness of the employer/carrier's authorization of an orthopedist 25 miles from the claimant's residence.

The JCC elected to ignore this prior precedent, stating, "I find no support in the statute or the case law which supports Claimant's position. Claimant cites to 40 and 50-year-old case law decided based on prior versions of the law applied to the circumstances prevalent during previous eras."

Claimant's Initial Brief included an analysis of the "prior versions of the law" existing at the time the above cases were decided to establish that there was no legal basis for the JCC to ignore their precedential value. Appellees make no attempt to refute Claimant's argument. Appellees do not undergo their own analysis of "prior versions of the law" to support the JCC's suggestion that this court's holdings in *Hall's Camp Inc.*, *Commercial Carrier Corp.*, *Wright*, and *Kessler* are inapplicable, nor do Appellees attempt to distinguish the facts of *Hall's Camp Inc.*, *Commercial Carrier Corp.*, *Wright*, or *Kessler* from the instant claim. Appellees entirely ignore Claimant's arguments regarding the applicability *stare decisis* and the reversible error resulting from the JCC's failure to follow prior precedent.

Instead, Appellees make the conclusory statement that Claimant's "reliance on older distance-of-treatment decisions is not persuasive to a reversal of the underlying rulings." (AB at 9). Without

citation to the record, Appellees then claim, "The JCC did not hold that distance can never be considered." (AB at 9-10). However, the FCO makes clear that the JCC did not find that the distance to Dr. Perloff's office was a factor to be considered, stating, "EC argues there are no set legal parameters in the statute or case law applicable to the 'reasonableness' of the distance a Claimant must travel to see his treating physician. I agree with EC that the geographic location of the doctor has nothing to do with the medical necessity of the treatment he or she may offer." (R. at 23).

In any event, it is irrelevant whether the JCC believes that distance can be considered in other cases under a different set of circumstances. Rather, the dispositive issue is whether the JCC considered the distance in determining the reasonableness of Appellees' authorization of Dr. Perloff in this case. Appellees appear to acknowledge that he did not, concluding that the JCC "found no controlling statute or case law requiring a change of physician on these facts, and further found Appellant's position rested on fairness concerns the JCC could not impose as equitable relief under Chapter 440. (R. 22-4)." (AB at 10).

Based on the foregoing, and for the reasons asserted in Claimant's Initial Brief, the JCC erred in construing section 440.13(2)(a), Florida Statutes, in a manner that ignored binding precedent.

III. THE JCC ERRED IN FINDING DR. PERLOFF'S AVAILABLITY VIA TELEHEALTH DISPOSES OF HIS DUTY TO ADDRESS WHETHER THE DISTANCE TO DR. PERLOFF'S OFFICE WAS REASONABLE.

The crux of Appellees' Answer Brief is that Claimant's appeal is an impermissible request to reweigh competing medical testimony. (AB at 4, 12-13). This proposition, while not directly responsive to any of the specific points raised on appeal, appears most relevant to Point III - that the JCC erred in finding that Dr. Perloff's availability via telehealth disposed of his duty to address whether the distance to Dr. Perloff's office was reasonable. (AB at 4, 12-13). Appellees' argument fails as it is based upon the faulty premise that the medical evidence is competing. To the contrary, the medical testimony is not conflicting and is generally unrefuted.

Appellees' claim that "[n]o current recommendation required Claimant to attend an in-person appointment with Dr. Perloff or any

other cardiologist." (AB at 4, 10). This is not accurate. Dr. Mathias testified that Claimant is high risk, that a patient with Claimant's history of a heart attack and bypass surgery should be seen for in-person visits with vitals checked every six (6) months, and that it is "absolutely" medically necessary that Claimant be seen in-person by a cardiologist at least once per year. (R. at 638, 646, 650-651, 656-657). Appellees do not cite record evidence or testimony refuting that Claimant is high risk, that a patient with his history should be seen in-person with vitals checked every six months, or that it is medically necessary that he be seen in-person specifically by a cardiologist at least once per year. This is because no such record evidence or testimony exists.

Although Dr. Perloff touted some benefits of telehealth visits and commented that there was not a lot the physical exam contributes to the management of a patient with coronary artery disease, he did not refute the medical necessity for Claimant to be seen by a cardiologist or to be seen in-person. (R. at 211-214). To the contrary, Dr. Perloff explicitly agreed that it is medically necessary for Claimant to be seen by a cardiologist. (R. at 231-232). Regarding in-person visits, Dr. Perloff also agreed that "it's always

better if I can put my hands on the patient," and that there are "limitations to telehealth." (R. at 212). Dr. Perloff further acknowledged that the fact that his office had not taken Claimant's vitals in more than a year was not ideal for someone with Claimant's cardiac history, commenting, "Obviously, we like to get vitals at every visit." (R. at 236).

The JCC specifically acknowledged Dr. Mathias' testimony that "it is medically necessary for patients like Claimant to be seen in-person by his cardiologist 'at least once a year….'" (R. at 20). Although the JCC found Dr. Perloff's opinions "more credible" to the extent he and Dr. Mathias disagreed on "the efficacy" of in-person versus telehealth appointments, he did not reject Dr. Mathias' unrefuted testimony as to the medical necessity of in-person visits. (R. at 23). Nor could he do so without a reasonable explanation. *See Patton v. Metal Indus.*, 636 So. 2d 891, 892-93 (Fla. 1st DCA 1994).

The parties agree that the JCC "registered" the 130 mile distance between Claimant's Fort Myers residence and Dr. Perloff's Ft. Lauderdale office requiring travel of around two-and-a-half hours each way. (AB at 8-9; R. at 20). However, it is clear that this distance was not a factor considered by the JCC in reaching his conclusion

that Appellees' authorization of Dr. Perloff was "not unreasonable." (R. at 23). Appellees attempt to convince this court otherwise, claiming, "Claimant's objections to distance were found by the JCC to be inconsistent with his objections to telehealth, because telehealth reduced or eliminated the travel burden for many visits. (R. 22-24)." (AB at 9). However, this is a complete mischaracterization of the JCC's findings. The JCC never acknowledged, much less addressed the "travel burden" to the Claimant. Rather, what the JCC actually stated was "Claimant's objections to the distance are inconsistent with Claimant's objections to his perception that Dr. Perloff's office over-uses telehealth." (R. at 23).

However, Claimant's objection to Dr. Perloff was never premised upon "his perception that Dr. Perloff over-uses telehealth." As outlined in the Initial Brief, Claimant routinely attended appointments with Dr. Perloff's office via telehealth following his first heart attack in 2020. (IB at 4-5). After being treated almost exclusively via telehealth for more than three years, however, Claimant suffered a second heart attack in 2023. (R. at 210, 554). He required a quadruple bypass surgery, placing him at high risk for suffering another cardiac event and requiring him to be seen in-

person by a cardiologist. (R. at 554-555, 638, 646, 650-651, 656-657). As clarified in his Motion for Rehearing, Claimant's sole objection is that he is being forced to choose between traveling five hours or more round-trip to be seen for medically necessary in-person visits with his authorized cardiologist vs. having to forego being seen in-person and physically examined altogether. (R. at 31).

When faced with Dr. Mathias' unrefuted testimony as to the need for in-person visits, the JCC was required to address the reasonableness of requiring Claimant to travel 260 miles roundtrip to see Dr. Perloff as explained in Points I and II above. Instead, he avoided the issue altogether by applying the circular logic that Dr. Perloff's "expressed willingness" to make himself available via telehealth addressed the distance issue and Dr. Perloff's willingness to see Claimant in person addressed the medical necessity for in-person visits. (R. at 24)

Appellees also point to the JCC's findings regarding the value of "continuity of care" as evidence that their authorization of Dr. Perloff is appropriate. (AB at 4, 8, 11, 13; R. at 23-24). While continuity of care might be a factor in determining the reasonableness of authorizing a particular physician under a certain set of

circumstances, it does not support Appellees' authorization of Dr. Perloff given the facts of this case.

Specifically, Dr. Perloff did not perform Claimant's cardiac catheterization with stent implant following his initial heart attack in 2020. Rather, this procedure was performed by Dr. Kshetrapal (a/k/a "Dr. Pal"), a local cardiologist, at HealthPark, a local hospital. (T. at 33-34; R. at 742). Dr. Kshetrapal was initially authorized, but then Claimant's care was unilaterally transferred to Dr. Perloff. (T. at 35; R. at 740-741). While being seen almost exclusively via telehealth by Dr. Perloff's office, Claimant suffered another heart attack in November 2023. (R. at 210, 554). He was taken to his local hospital, HealthPark, where he underwent a cardiac catheterization followed by the quadruple bypass surgery performed by Dr. Buss, a local cardiologist. (T. at 36; R. at 165-166, 554-555). Appellees' decision thereafter to authorize follow-up care with Dr. Perloff, a non-local cardiologist with no involvement in Claimant's hospitalizations or surgeries, hardly aligns with "continuity of care."

In addressing the value of continuity of care, the FCO refers to an example given by Dr. Perloff regarding how his role in administering Claimant's stress tests gives him the benefit of

knowing Claimant's cardiac history. (R. at 21-22). However, after Dr. Perloff gave this testimony, but prior to the Final Hearing, Appellees authorized Claimant's October 10, 2025 stress test at Dr. Kshetrapal's practice in Fort Myers, Florida. (R. at 830-833). Thus following the logic of both Dr. Perloff and the JCC, Dr. Kshetrapal's office, having administered Claimant's latest stress test, would be in a better position to treat the Claimant if "continuity of care" was the goal.

Both the JCC and Appellees point to the fact that Claimant is not seeking a one-time change pursuant section 440.13(2)(f), Florida Statutes. (AB at 7; R. 19-20). Unfortunately, this issue cannot be remedied by a one-time change as Appellees retain the right to select Claimant's alternative cardiologist. Given their position that it is reasonable to authorize a cardiologist located 250 to 260 miles roundtrip from Claimant's residence, Claimant cannot expect that a one-time change request will result in the authorization of a cardiologist in closer proximity.

Based on the foregoing, and for the reasons asserted in Claimant's Initial Brief, JCC erred in finding that Dr. Perloff's

availability via telehealth disposed of his duty to address whether the distance to Dr. Perloff's office was reasonable.

IV. THE JCC ERRED IN DENYING CLAIMANT A FOLLOW-UP APPOINTMENT WITH A CARDIOLOGIST GIVEN UNREFUTED EVIDENCE SHOWING CLAIMANT HAD NOT BEEN SEEN BY A CARDIOLOGIST SINCE THE FILING OF HIS PETITION FOR BENEFITS.

Appellees do not directly address the arguments raised in Point IV on appeal – that the JCC erred in denying Claimant a follow-up appointment with a cardiologist given the unrefuted evidence showing Claimant had not been seen by a cardiologist since the filing of his Petition for Benefits.

Appellees instead declare:

> The JCC likewise did not err by declining to treat the request for 'future medically necessary follow-up" as a basis to compel a different cardiologist. The JCC found that no current recommendation required Claimant to attend an in-person appointment with Dr. Perloff or any other cardiologist and that the requested future authorization was premature. (R. 19, 24). A JCC may not adjudicate or reserve jurisdiction over 'future claims.' *Dep't of Agric. & Consumer Servs. v. Anderson*, 132 So. 3d 900, 901 (Fla lst DCA 2014). Here, the JCC properly confined the ruling to the benefits which were ripe for adjudication and denied the request for

> open-ended future authorization of medical services. (R. 24)

(AB at 10-11).

The above misrepresents the JCC's findings. While the JCC denied the benefits sought by Claimant, the denial was not premised on a "request for open-ended future authorization of medical services," a lack of "current recommendation," or a finding that the benefits sought were "premature." Rather, the JCC simply found that Claimant's "complaints" were addressed by Dr. Perloff's willingness to make himself available in-person or via telehealth. (R. at 24).

Appellees' repeated representation that the JCC found Claimant's request for authorization of a cardiologist to be "premature," while inaccurate, warrants further comment. (AB at 4, 10-11, 13). Claimant's need for ongoing care with a cardiologist is undisputed. To find that Claimant's request for a cardiologist within a reasonable distance was rendered premature by Appellees' authorization of Dr. Perloff produces an absurd result: Claimant would have to become medically non-compliant and forgo medically necessary treatment with Dr. Perloff to make the issue of a cardiology visit "ripe" in order to challenge the reasonableness of Appellees'

authorization of Dr. Perloff. Such interpretation contravenes the legislative intent of assuring "the quick and efficient delivery of… medical benefits" to Claimant. §440.015, Fla. Stat.

Appellees do not dispute that at the time of the Final Hearing, Claimant had not been seen in-person and physically examined, nor had his vitals taken by anyone from Dr. Perloff's office since April 2024; that the April 15, 2024 visit was conducted by Dr. Perloff's nurse practitioner; and that Claimant had only been seen by Dr. Perloff's nurse practitioner and not by Dr. Perloff or any other cardiologist subsequent to undergoing his most recent stress test; and that the post-stress test appointment was conducted via telehealth. (T. at 41-43; R. at 421-424, 834-846).

Based on the foregoing, and for the reasons asserted in Claimant's Initial Brief, the JCC erred in denying Claimant a follow-up appointment with a cardiologist given the unrefuted evidence showing Claimant had not been seen by a cardiologist since the filing of his Petition for Benefits.

V. THE JCC ERRED IN FAILING TO FIND THAT APPELLEES ACQUIESCED TO CLAIMANT'S ENTITLEMENT TO A CARDIOLOGIST WITHIN A REASONABLE DISTANCE FROM HIS RESICENCE OR PLACE OF EMPLOYMENT.

With regard to Point V on appeal, Appellees merely assert, "The Oct 10, 2025, local stress test did not compel the JCC to find that Appellees authorized a wholesale transfer of cardiology care to the local testing facility. The record shows the stress test was authorized and performed locally, but the follow-up review occurred through Dr Perloff's office. (R. 830-46; T. 40-2). The JCC was entitled to reject the argument that authorizing a local diagnostic test automatically required authorization of a different treating cardiologist for all future care. (R. 22-3)"

The JCC did not "reject the argument that authorizing a local diagnostic test automatically required authorization of a different treating cardiologist for all future care" as suggested by Appellees. Rather, the JCC did not make any findings whatsoever relating to Claimant's timely asserted acquiescence argument. (R. at 73, 91-92).

Further, acceptance of Appellees' argument would eliminate their oft cited justification for authorizing Dr. Perloff under the guise

of "continuity of care." (AB at 4, 8, 11, 13). Specifically, the example cited by the JCC to support of the value of continuity of care was Dr. Perloff's testimony regarding his role in performing Claimant's stress tests, which at the time were being performed in his office. (R. at 21-22, 50). Following Dr. Perloff's deposition, however, Appellees agreed to authorize Claimant's stress test locally in response to the subject Petition for Benefits. (R. at 42-54, 77). The stress test was subsequently performed on October 10, 2025 at the Heart Institute at Bass Road, a local cardiology practice in Fort Myers, upon the order of Dr. Subhash Kshetrapal and under the supervision of Dr. Kamaldeep Singh, both local cardiologists with the Heart Institute at Bass Road. (R. at 830-833).

Now, Appellees suggest that Claimant's stress tests, relied upon for establishing continuity of care with Dr. Perloff, are merely "diagnostic tests" insufficient to establish care when performed by another provider. (R. at 830-833). Such argument does not comport with logic or reason.

Based on the foregoing, and for the reasons asserted in Claimant's Initial Brief, the JCC erred in failing to find that Appellees

acquiesced to Claimant's entitlement to a cardiologist within a reasonable distance from his residence or place of employment.

CONCLUSION

Appellees' Answer Brief fails to identify a basis for affirmance that defeats the errors outline in Claimant's Initial Brief. Claimant therefore requests this Court to reverse and remand the JCC's FCO with instructions for entry of an order awarding Claimant a cardiologist within a reasonable distance from his residence or place of employment to review his stress test results and for future medically necessary follow-up medical appointments for the evaluation and treatment of the compensable heart disease with attorney's fees and costs.

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this Reply Brief of Appellant was computer-generated using Bookman Old Style fourteen (14) point font on Microsoft Word and thereby complies with the font standards and word count as required by Fla. R. App. P. 9.210(2)(b) for computer-generated briefs.



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been served on this 16th day of October 2026 via electronic mail delivery upon: Daniel DeMay and Samuel Earp at: DDeMay@VaughanMcLean.com; SarasotaOffice@VaughanMcLean.com.



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